

RECORDS REQUIRED OF COMMERCIAL DRIVER'S LICENSE (CDL) HOLDERS

A. Records Required of School Bus Drivers.1. Employees.

- a. No employee shall operate a school bus unless that employee is medically cleared by a licensed physician, nurse practitioner, or advanced practice registered nurse ("licensed medical professional"). This clearance is documented in the School Bus Driver's Application for Physician's Certificate, which is signed by the employee and the licensed medical professional.
 - (i) School Bus Drivers must have an annual physical examination of a scope prescribed by the Virginia Board of Education and must furnish the form prescribed by the Board of Education showing the results of such examination.
 - (ii) The physical form (identified above) describes the basic physical and mental qualifications for school bus drivers; however, the examining licensed medical professional shall make the final determination of the individual's physical and/or mental ability capacity to operate a school bus based upon their assessment of the individual's overall medical history.
- b. No employee shall drive a school bus unless they furnish a statement or copy of records from the Department of Motor Vehicles (DMV) showing that the employee has a valid and current commercial driver's license (CDL) with the required endorsements. In addition, each school year, the employee will furnish a copy or statement from the DMV showing that the employee, within the preceding five years, has not been convicted of driving under the influence of alcohol or drugs, convicted of a charge of refusing to take a blood or breath test, convicted of a felony, or assigned to any alcohol safety action program or driver alcohol rehabilitation program pursuant to Section 18.2-271.1 of the Code of Virginia or, within the preceding twelve months, has not been convicted of two or more moving traffic violations or has not been required to attend a driver improvement clinic by the Commissioner of the Department pursuant to Section 46.2-498 of the Code of Virginia for the applicable employment period.

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- (iii) In accordance with School Board Policy 7324 (Drug and Alcohol Testing for Employees Required to Hold a CDL), the Omnibus Transportation Employee Testing Act of 1991, as amended, and Federal Regulation 49 CFR Parts 40 and 382, the employee will submit to applicable alcohol and/or controlled substance testing.

2. Applicants. Before an applicant is accepted into the School Bus Driver training program, the applicant must provide the following to the HRTD and/or Transportation Department:

- a. The applicant must submit a School Bus Driver's Application for a Physician's Certificate, signed by the applicant and a licensed medical professional for the applicable employment period.
- b. The applicant must also furnish a statement or copy of records from the DMV showing that the applicant, within the preceding five years, has not been convicted of driving under the influence of alcohol or drugs, convicted of a charge of refusing to take a blood or breath test, convicted of a felony, or assigned to any alcohol safety action program or driver alcohol rehabilitation program pursuant to Section 18.2-271.1 of the Code of Virginia or, within the preceding twelve months, has not been convicted of two or more moving traffic violations or has not been required to attend a driver improvement clinic by the Commissioner of the Department pursuant to Section 46.2-498 of the Code of Virginia.
- c. The applicant must furnish two moral character statements, each signed by a person who resides in the school division or in the applicant's community. The form states that the applicant is of good moral character.
- d. The applicant must exhibit a license showing the applicant has successfully undertaken the examination prescribed by Section 46.2-339 of the Code of Virginia.
- e. The applicant must be at least 18 years old.
- f. In accordance with School Board Policy 7324, the Omnibus Transportation Employee Testing Act of 1991 as amended, and Federal Regulation 49 CFR Parts 40 and 382, the applicant will submit to applicable alcohol and/or controlled substance testing.

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B. Records Required of Commercial Driver's License Holders in a Non-School Bus Driver Position.1. Employees.

- a. No employee shall drive an LCPS-owned commercial motor vehicle unless that employee has a valid and current CDL license, with the required endorsements, issued by their state residency motor vehicle agency.
- b. No employee shall drive an LCPS-owned commercial motor vehicle unless that employee furnishes a statement or copy of records from the DMV showing that the employee, within the preceding five years, has not been convicted of driving under the influence of alcohol or drugs, convicted of a charge of refusing to take a blood or breath test, convicted of a felony, or assigned to any alcohol safety action program or driver alcohol rehabilitation program pursuant to Section 18.2-271.1 of the Code of Virginia or, within the preceding twelve months, has not been convicted of two or more moving traffic violations or has not been required to attend a driver improvement clinic by the Commissioner of the Department pursuant to Section 46.2-498 of the Code of Virginia for the applicable employment period.
- c. In accordance with School Board Policy 7324 (Drug and Alcohol Testing for Employees Required to Hold a CDL), the Omnibus Transportation Employee Testing Act of 1991, as amended, and Federal Regulation 49 CFR Parts 40 and 382, the employee will submit to applicable alcohol and/or controlled substance testing, records of which shall be provided to HRTD and/or the Transportation Department.

2. Applicants.

- a. Applicants must furnish a statement or copy of records from the DMVs showing that the employee has a valid and current CDL, with the required endorsements. In addition, the employee will furnish a copy or statement from the DMV showing that the employee, within the preceding five years, has not been convicted of driving under the influence of alcohol or drugs, convicted of a charge of refusing to take a blood or breath test, convicted of a

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felony, or assigned to any alcohol safety action program or driver alcohol rehabilitation program pursuant to Section 18.2-271.1 of the Code of Virginia or, within the preceding twelve months, has not been convicted of two or more moving traffic violations or has not been required to attend a driver improvement clinic by the Commissioner of the Department pursuant to Section 46.2-498 of the Code of Virginia for the applicable employment period.

- b. The applicant must exhibit a license showing the applicant has successfully undertaken the examination prescribed by Section 46.2-339 of the Code of Virginia.
- c. In accordance with School Board Policy 7324 (Drug and Alcohol Testing for Employees Required to Hold a CDL), the Omnibus Transportation Employee Testing Act of 1991 as amended, and Federal Regulation 49 CFR Parts 40 and 382, the applicant will submit to applicable alcohol and/or controlled substance testing. The school division shall administer alcohol and controlled substance tests in accordance with federal laws governing test procedure and testing sites.

Former Policy 7-14 Adopted: 5/10/94

Revised: 5/25/10, 2/23/16, 3/26/19

Current Revision: 11/26/24

Legal Refs.: Va. Code §§ [18.2-271.1](#), [22.1-178](#), [46.2-339](#), [46.2-498](#); [8VAC20-70-280](#); [49 U.S.C. § 31136](#); [49 C.F.R Part 40](#), [Part 382](#).

Cross Refs.: Policy [7324](#), Drug and Alcohol Testing for Employees Required to Hold a Commercial Driver's License (CDL)